



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9676 (EXTENSION)
ORIGINAL August 11, 1988
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9676 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 9 1996

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

EM Science
Cincinnati, OH

March 11, 1996



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9676 (PTE)
FIRST REVISION March 15, 1995

FEB - 5 1996

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 9676. The expiration date of the exemption for the party(ies) is September 30, 1996.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.

for Marilyn J. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB - 5 1996

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Mallinckrodt Baker, Inc.
Phillipsburg, NJ

December 4, 1995



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAR 15 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9676
(FIRST REVISION)

1. EM Science, Cincinnati, Ohio, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of various flammable liquids with flash points above 20F for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of certain flammable liquids contained in four inside glass bottles or PVC-coated glass bottles of one-gallon capacity each, overpacked in a corrugated, fiberboard box conforming with DOT Specification 12B65 except for handholes in the side panels of the box, and provides no relief from any regulation other than as specifically stated. References to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991. (See Appendix A of this Exemption)

2. BASIS. This exemption is based on EM Science's application dated June 1, 1994, submitted in accordance with 49 CFR 107.105. (See Appendix A of this Exemption)

3. HAZARDOUS MATERIALS (Descriptor and class). Various flammable liquids whose flash points are above 20°, classed as Class 3 materials.

4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable liquid, n.o.s.; or the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119 (b)(4); 173.125; 178.205.

6. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification corrugated fiberboard box conforming with DOT Specification 12B65 except for handholes in the side panels of the box. (Handholes must be backed-up by roll-up pads fabricated of 275 pound test single-wall corrugated fiberboard). Inside packaging consists of not more than four glass bottles or PVC-coated glass bottles of one-gallon capacity each.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemptions may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemptions are complied with and the current copy of this exemption is maintained at each facility from which such reoffering occurs.

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b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171 - 180.

c. No new construction of this packaging identified in paragraph 7 of this exemption is authorized after September 30, 1994. As the holder of this exemption, you may request a renewal to continue the use of the packaging manufactured prior to September 30, 1994. However, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provision of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

9. Compliance. Failure by a person to comply with any of the following may result in the suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 se seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

11. EXPIRATION DATE. June 30, 1996.

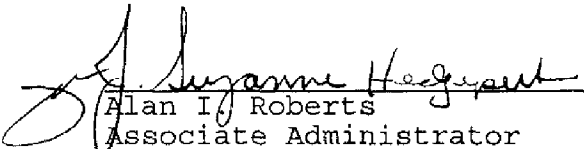
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Issued at Washington, D.C.

MAR 15 1995

(DATE)


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U. S. Department of Transportation, Washington, D.C.,
20590. Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption are
permitted. Any alteration of this exemption is prohibited.

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APPENDIX A

The following are hereby granted party status to this exemption based on their application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon and 107.105.

Mallinckrodt Chemical Co., Paris, KY, application dated July 14, 1994. - PTE-1